

Court No. - 32

Case :- WRIT - C No. - 36739 of 2019

Petitioner :- 4d Mission Charitable Trust And Another

Respondent :- Dakshinanchal Vidyut Vitaran Nigam Ltd. And
2 Others

Counsel for Petitioner :- Vijendra Pal Singh, Smt. Krishna
Singh

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

Hon'ble Shashi Kant Gupta, J.

Hon'ble Saurabh Shyam Shamsbery, J.

Put up on 26.11.2019, as fresh.

Till then, no coercive measure shall be taken against the
petitioners.

Meanwhile, learned counsel for the respondents shall obtain
instructions in the matter.

Order Date :- 14.11.2019

SB

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Counsel for Petitioner :- Vijendra Pal Singh, Smt. Krishna Singh

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

Hon'ble Shashi Kant Gupta, J.

Hon'ble Neeraj Tiwari, J.

This writ petition has been filed, inter alia, for the following relief:

"(i) issue a writ, order or direction in the nature of certiorari to quash the recovery certificate dated 19.10.2019 issued by respondent no. 3 annexure no.9 to the writ petition."

Heard the learned counsel for the petitioner and Mr. Baleshwar Chaturvedi, learned counsel for the Electricity Department and perused the record.

Learned counsel for the petitioner has submitted that in reply to the show cause notice dated 8.3.2018, the petitioner filed his objection on

26.3.2018 before the respondent no. 2 but no final order has yet been passed and the impugned recovery certificate dated 19.10.2019 has been issued against the petitioner without considering the objection of the petitioner and overlooking the provisions contained under the U.P. Electricity Supply Code 2005. We find substance in the submission so made by the learned counsel for the petitioner.

Considering the facts and circumstances of the case and taking a lenient view in the matter, we direct the petitioner to appear on 12.12.2019 at 11.00 A.M. before the Respondent No.2, Executive Engineer along with his objection and adduce his evidence, if any, in support of his contention. The Respondent No. 2, thereafter, shall pass a final order by a speaking and reasoned order after considering the objections of the petitioner as well as the contention raised by the petitioner within a period of four weeks thereafter.

For a period of seven weeks from today or till the disposal of the representation/objection, whichever is earlier, no coercive action shall be taken against the petitioner.

In case the petitioner is aggrieved with the final order, if any, passed against the petitioner, it will be open for the petitioner to file an appeal before the concerned authority under Section 127 of the Electricity Act, 2003 in accordance with law.

It is made clear that in case the petitioner does

not appear on the said date fixed before the concerned authority as stated herein above, the impugned recovery certificate shall stand revived automatically.

Order Date :- 26.11.2019

MLK